

PRIVACY ACT STATEMENT

Authority: 10 U.S.C. 5013; 10 U.S.C. 5041; 10 U.S.C. 801-946a; 10 U.S.C. 2683; 10 U.S.C. 8046; 10 U.S.C. 8088; E.O. 13825; E.O. 14103; JAGINST 5800.7G, Ch. 1, Part B; MCO 5800.16, Vol. 14-15; and SORNs M01070-6 and DoD 0006 (Available at: <https://dpcl.d.defense.gov/Privacy/SORNsIndex/DOD-Component-Notices/>).

Purpose: Information will be used by designated command personnel to record and process non-judicial punishment actions. Information will be added to the individual's OMPF. Specific punishments may be recorded and effectuated in the individual's MCTFS record.

Routine Uses: Information is not routinely disclosed outside of DoD. A complete list and explanation of the applicable routine uses is published in the authorizing SORNs.

Disclosure: Mandatory under MCO 5800.16. Failure to provide information may result in additional punishment under Article 92, UCMJ, 10 U.S.C. 892.

Records Management: This form shall be managed in accordance with Record Schedule 5000-82.

1. UCMJ OFFENSES ALLEGED AND SUMMARIES (including date and place, but **not** victim PII).

A.
B.
C.
D.
E.

2. I have been advised of and understand my rights under Article 31, UCMJ. I also have been advised of and understand my right to demand trial by court martial in lieu of non-judicial punishment (NJP).

I further certify that I **been given the opportunity to consult with a military lawyer**, provided at no expense to me, regarding a pending NJP hearing for the above offenses. I understand that I have the right to refuse NJP unless attached to or embarked upon a vessel. I further understand that acceptance of NJP does not preclude my command from taking other adverse administrative action against me.

Accused refused to sign

DATE (Signature of accused or CO if refused)

3. The accused has been afforded these rights under Article 31, UCMJ, and advised of the right to demand trial by court-martial if not attached to or embarked upon a vessel. I certify that, if applying the vessel exception, I have complied with all applicable requirements.

DATE (Signature of CO)

4. CURRENT UNAUTHORIZED ABSENCES >24 HRS AND MARKS OF DESERTION

5. FINDINGS (enter "G" for guilty or "NG" for not guilty)

By a preponderance of the evidence, I find the accused: 1A 1B 1C 1D 1E

6. PUNISHMENT IMPOSED AND DATE

7. SUSPENSION OF EXECUTION OF PUNISHMENT (or "NONE")

8. NJP AUTHORITY (First Middle Last, Title, Service Branch if other than USMC)

8A. RANK/GRADE

8B. EDIPI

9. Upon consideration of the attendant facts and circumstances, as well as the needs of military discipline within this command, I have determined the appropriate punishment to be that indicated above.

(Signature of NJP Authority)

10. DATE OF NOTICE
TO ACCUSED OF FINAL
DISPOSITION TAKEN

11. The accused has been advised of the right to appeal.

12. Having been advised of and understanding the right to appeal, at this time

13. DATE OF APPEAL,
IF ANY
Not appealed

DATE (Signature of NJP Authority)

DATE (Signature of accused or CO if refused)

14. DECISION ON APPEAL (IF APPEAL IS MADE), DATE THEREOF, AND SIGNATURE OF NJP APPEAL AUTHORITY

DATE (Signature of NJP Appeal Authority)

15. DATE OF NOTICE
TO ACCUSED OF
DECISION ON APPEAL

16. Final administrative action, as appropriate, has been completed. UD# DTD INIT

17. UNIT

18. ACCUSED (Last, First Middle)

19. RANK/GRADE

20. EDIPI

INSTRUCTIONS FOR COMPLETING NAVMC 10132

ITEM 1. Enter the alleged articles and offenses, providing additional information in the summary box, including date and place. If the offense is an attempt, conspiracy, or solicitation, list the underlying offense. If the offense is an orders violation, specify or describe the order. Leave the findings blank until the NJP hearing is conducted. **Example:** Art. 92 Failure to obey general order or regulation - ASO 5510.15E unreg. weapon on base 1 Jul 21.

ITEM 2. Advise the Marine in accordance with Article 31, UCMJ and JAGINST 5800.7G. Indicate NJP acceptance/refusal and whether the accused has or has not been provided the opportunity to consult with counsel, without regard for whether he/she chose to do so. If completing manually, make appropriate pen changes and initial next to each. If a Marine refuses to sign, mark the box indicating refusal and the CO should sign instead. If the vessel exception does not apply, treat a refusal to sign as a refusal of NJP and forward the UPB to the officer exercising court-martial jurisdiction for disposition. Signing **locks** items 1, 2, 17-20, 22-25.

ITEM 3. Certify that the Marine has been advised of his/her rights and that, if the vessel exception is invoked, all applicable requirements have been met. This must take place before imposition of NJP. Signing **locks** items 1-3, 17-20, 22-25.

ITEM 4. Only if the Marine is receiving NJP for violating Article 85 and/or 86: enter relevant marks of desertion and/or periods of UA greater than 24 hours.

ITEM 5. Enter G (or NG) to indicate that the accused is guilty (or not guilty) for each corresponding offense listed in Item 1. Leave blank when there is no corresponding offense (e.g., when there are three allegations, leave findings for 1D and 1E blank).

ITEM 6. Enter punishment imposed and date of imposition. If no punishment is imposed, destroy the form and do not enter into the Marine's record. If punishment is imposed but it is suspended, indicate that in Item 7, below. **Example:** Restr to limits of H&S Co., 1st Bn, 3d Mar for 14 days, w/o susp fr du. 2 Jun 12.

ITEM 7. Enter the date and the specific terms of the suspension. If no part of the punishment is suspended, enter the word "NONE." When suspending all or portions of the punishment, indicate the specific punishment, the length of the suspension, and the terms for automatic remission. **Example:** 2 Jun 12. Red to LCpl, E-3, susp for 3 mos, at which time unless sooner vac, red will be remitted w/o further action.

ITEM 8. Enter name, title/unit, rank/grade, and EDIPI of the officer who took the action listed in item 6. See rank/grade note, below.

ITEM 9. Indicate findings on each offense listed in item 1, using G to indicate Guilty and NG to indicate Not Guilty, then sign. Signing **locks** items 1-9, 17-20, 22-25.

ITEM 10. Enter the date of notification to the Marine of final disposition. This will normally be the same date as item 6, except where notification is done by mail.

ITEM 11. When NJP has been imposed, notify the Marine of the right to appeal (see JAGINST 5800.7G section 0110f). The officer imposing NJP shall date and sign the item. This will normally be the same date as item 6 and cannot be prior. It may in some cases be a reasonable number of days afterward. Signing **locks** items 10-11.

ITEM 12. The Marine upon whom NJP is imposed shall indicate "I do intend to appeal" or "I do not intend to appeal" and sign / date. If the Marine refuses, the CO shall enter "the accused refuses to sign" and sign / date. Signing **locks** item 12.

ITEM 13. Enter the date of the appeal of the NJP. If no appeal, mark "Not appealed."

ITEM 14. If an appeal is made, enter the date of final action. This item will be signed by the officer acting on the appeal. It may be signed "By direction." Final action will be noted in the Remarks section. **Examples:** Appeal denied as untimely. 10 Nov 22. / Appeal granted, punishment set aside. 10 Nov 22. / Red set aside, no further relief granted. 10 Nov 22. Signing **locks** items 13-14.

ITEM 15. Enter the date the Marine was notified of the decision on the appeal. If the Marine has been transferred or discharged, enter the date of the endorsement forwarding the decision to the Marine's new command or permanent address.

ITEM 16. Upon completion of required administrative action, to include verifying the copy of the UPB form with required signatures is on file in the Marine's OMPF, the officer responsible for the action will initial or electronically sign this item. The officer must be the commanding officer or officer-in-charge, or an officer designated to sign "By direction" thereof. A copy of the initialed or signed form will be sent to the originating unit so the unit diary number and date can be recorded on the unit's copy of the UPB. Ensure completion of all unit diary entries in accordance with Marine Corps Total Force System Personnel Reporting Instructions User's Manual (MCTFSPRIUM). **SIGNING LOCKS THE ENTIRE FORM.**

ITEM 17. Indicate the company-sized unit of the accused, up to the first GCMCA command. **Examples:** A Co., 1st LAAD Bn, MACG-18, 1st MAW / HQ Co., 3d Bn, 7th Mar, 1st MARDIV / LSST, H&H Sqn, MCAS Cherry Point / SAMMC Det., WWBn-E, WWR, MCI-NCR.

ITEMS 18-20: Complete accused biographical data. These will automatically be copied to Items 23-25. See Rank/Grade note near the bottom of the next column.

ITEM 21: The following entries are required, in chronological order, if applicable:

- YYYY-MM-DD ITEM 1: Additional Offenses:
F. [Article] [Specific Offense]. [Summary incl. date, place]. [G/NG].
G. [Article] [Specific Offense]. [Summary incl. date, place]. [G/NG].
etc.

NOTE: DO NOT ADD OFFENSES AFTER THE ACCUSED SIGNS

- YYYY-MM-DD ITEM 2: Fwd to Bn/Sqn CO recom [recommendation for court-martial, NJP, or specific NJP punishment].
- YYYY-MM-DD ITEM 7: [punishment] susp on [NJP date] vacated.
- YYYY-MM-DD ITEM 13: Appeal submitted d Mmm yy, five days elapsed with no action. Punishment of restriction stayed.
- YYYY-MM-DD ITEM 13: Appeal submitted d Mmm yy, five days elapsed with no action. Punishment of extra duties stayed.
- YYYY-MM-DD ITEM 14: Appeal denied, [reason].
- YYYY-MM-DD ITEM 14: Appeal granted, [relief given].
- YYYY-MM-DD ITEM 14: [punishment] susp on [Appeal date] vacated.
- YYYY-MM-DD ITEM 14: [punishment], is set aside. All rights, privileges and property affected will be restored.
- YYYY-MM-DD ITEM 22: Additional Victims:
F. [Victim Status] [Victim Sex] [Victim Race] [Victim Ethnicity]
G. [Victim Status] [Victim Sex] [Victim Race] [Victim Ethnicity]
etc.

NOTE: DO NOT ADD VICTIMS AFTER THE ACCUSED SIGNS

In addition to the aforementioned required entries, this item may be used to record other appropriate remarks or information. **However, do not include victim PII.**

ITEM 22: Fill in victim demographic information, matching the best entry from personnel records (for military members) or the victim's self-identification. If the victim declines to answer, enter "Unknown." Avoid other deviations or manual entries unless necessary to avoid giving offense to a victim.

Status: Military, Military (spouse), Civilian (spouse), Civilian (dependent), Civilian (DON employee), Civilian (other), Other, Unknown

Sex: Male, Female, Unknown

Race: American Indian or Alaskan Native, Asian, Black or African American, Native Hawaiian or Other Pacific Islander, White, Other, Unknown

Ethnicity: Hispanic or Latino, Not Hispanic or Latino, Unknown

ABBREVIATIONS: Use the following abbreviations as appropriate:

- | | |
|---------|--------------------------|
| • conf | confinement / confined |
| • cust | correctional custody |
| • du | duty |
| • forf | forfeitures |
| • fr | from |
| • fwd | forwarded |
| • rec | recommending |
| • red | reduction / reduced |
| • restr | restriction / restricted |
| • susp | suspension / suspended |
| • w/o | without |

RANK/GRADE: Use only Pvt, PFC, LCpl, Cpl, Sgt, SSgt, GySgt, MSgt, 1stSgt, MGySgt, SgtMaj, WO, CWO2, CWO3, CWO4, CWO5, 2ndLt, 1stLt, Capt, Maj, LtCol, Col, BGen, MajGen, LtGen, Gen as Marine ranks. For other services, use the correct and appropriate rank abbreviation. For Navy petty officers, use the rating abbreviation. Use only E1, E2, E3, E4, E5, E6, E7, E8, E9, W1, W2, W3, W4, W5, O1, O1E, O2, O2E, O3, O3E, O4, O5, O6, O7, O8, O9, O10 as pay grades. Do not include periods in Marine ranks, nor dashes in pay grades, nor the number 0 for the letter O in officer pay grades. Pay attention to cases in which rank and pay grade do not correspond (e.g., a Marine frocked to the next rank).

ELECTRONIC SIGNING AND LOCKING: Prepare items 1, 17-20, and 22 first.

Then have the accused complete item 2. The CO may then complete item 3 prior to the NJP hearing, and complete 4-11 contemporaneously with the NJP hearing. The legal officer or another assistant may then facilitate the accused's completion of item 12. Signature fields lock completed sections. Pay attention to the instructions, above, for items 2, 3, 9, 11, 12, 14, 16. **SIGNING ITEM 16 LOCKS THE ENTIRE FORM.** Ensure the original unit copy of the UPB is maintained after entry in the record if any punishment is suspended and the suspension may be vacated, as vacated suspensions cannot be recorded in the Remarks section in item 21 after item 16 is signed.